

Multiple Choice (10 marks)

1. The president, vice-president, and U.S. civil officers can be impeached. Which of the following is not true about impeachment?
 - (a) Grounds include treason and bribery
 - (b) Grounds include high crimes and misdemeanors
 - (c) A majority vote in the House is necessary to invoke charges of impeachment
 - (d) A three-fourths vote in the Senate is necessary to convict and remove from office
2. If there is a conflict between a congressional act and a valid treaty, how is it resolved?
 - (a) The congressional act always prevails
 - (b) The valid treaty always prevails
 - (c) The last in time prevails
 - (d) The president decides
3. Which of the following is not a correct form of real evidence?
 - (a) Weapons or implements
 - (b) marks, scars, wounds
 - (c) Photographs
 - (d) Hearsay
4. Under Article III, federal judicial power extends to which of the following kinds of cases?
 - (a) interpretation of treaties
 - (b) interpretation of admiralty laws
 - (c) disputes between states and foreign citizens
 - (d) all of the above
5. Which of the following is a legislative act that inflicts punishment without a trial?
 - (a) Bill of attainder
 - (b) Ex post facto law
 - (c) Statutes
 - (d) Ordinances

True / False (10 marks)

Answer True or False

6. True or False: A corporation dedicated to missing children may legally use the name 'FBI Consultants, Incorporated' without issues.
7. True or False: Under common law, a possessor of land has no duty to protect against natural conditions for undiscovered trespassers.
8. True or False: The best evidence rule applies in all situations where a document is introduced as evidence in court proceedings.
9. True or False: Slander per se requires no proof of publication to establish liability for spoken defamation.
10. True or False: A destination contract requires the seller to deliver the goods to the buyer's location at the seller's expense until delivery is complete.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. Discuss the responsibilities of a life tenant regarding the preservation of land and analyze the implications of permissive waste, focusing on their obligations toward damages caused by third parties.
12. Discuss the factors that might render a Miranda waiver ineffective, using the scenario of a 15-year-old defendant who confessed after two hours of questioning.

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